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General Comment

I am deeply concerned about the phrase "to ensure that unnecessarily burdensome requirements do not hamper private sector AI innovation". Already we have seen examples of AI being used for making critical decisions and making mistakes where the reasoning cannot easily be determined.

AI should be subject to *significant* regulation and human oversight precisely because if an AI makes a wrong decision, it is impossible to hold that AI accountable.

While there are plenty of machine-mediated decision engines out there, GenAI has the distinction of not only miscalculation but of hallucinating incorrect facts or conclusions out of thin air.